

1.

CASE #	CASE NAME	HEARING NAME
CVME2604699	CRUZ VS PACIFIC COAST BUILDERS & REMODELERS INC	PETITION RE: ARBITRATION AWARD

Tentative Ruling: GRANTED. No opposition filed.

2.

CASE #	CASE NAME	HEARING NAME
CVSW2207261	LOWRY VS HOPE AND TRUST TRADING, INC.	MOTION TO ENFORCE JUDGMENT

Tentative Ruling: DENIED.

The Motion to Enforce Judgment should be denied since the proceedings are stayed, and the Court of Appeal has determined that the default judgment of which Judgment Creditor seeks enforcement is void.

3.

CASE #	CASE NAME	HEARING NAME
CVSW2207261	LOWRY VS HOPE AND TRUST TRADING, INC	MOTION TO ENFORCE JUDGMENT

Tentative Ruling: DENIED.

The Motion to Enforce Judgment should be denied since the proceedings are stayed, and the Court of Appeal has determined that the default judgment of which Judgment Creditor seeks enforcement is void.

4.

CASE #	CASE NAME	HEARING NAME
CVSW2310021	YINGLING VS YOUNGREN	MOTION FOR SUMMARY JUDGMENT

Tentative Ruling: GRANTED.

Lynn Yingling (“Lynn”) and Edward Yingling (collectively “Plaintiffs”) contend that Lynn was injured when a vehicle driven by Steven E. Lowe’s (“Decedent”) crossed over the center divider lines and struck her vehicle. It is alleged the Estate of Steven Eugene Lowe; Jennifer Youngren (“Youngren”) the trustee of the Steven E. Lowe 2022 Trust, and Debbie Trkja (“Trkja”) either owned, leased, maintained, or otherwise controlled the vehicle driven by Decedent.

The first amended complaint (“FAC”) asserts the following claims: (1) negligence, (2) negligent entrustment, and (3) loss of consortium. Youngren and Estate of Steven E. Lowe filed a cross-complaint against Plaintiffs alleging that Plaintiffs had entered into a settlement agreement with them but have breached said agreement by refusing to perform. The cross-complaint asserts a cause of action for breach of contract and judicial estoppel. Trkja has filed a nearly identical cross-complaint against Plaintiffs asserting the same claims.